

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306649	VASQUEZ VS KIA AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the Motion for Attorney's fees and costs in the reduced, reasonable amount of \$41,215 (attorney's fees of \$37,732.50 plus costs of \$3,482.50).

Plaintiff counsel's requested hourly rates are not reasonable for the Riverside geographic area. This is a simple lemon law case. Plaintiffs make no showing that they could not obtain local counsel and are therefore entitled to out-of-town rates. The court will reduce the hourly rates of attorneys Daghighian and Rosenstein to \$525 per hour; Brim, Murray and Hamblin to \$400 per hour; and Ortiz to \$375 per hour. The court will allow the following expenditures of time on the case: Brim, 57 hours, Daghighian, 2.1 hours, Hamblin, 1 hour, Murray, 0.2 hours, Ortiz, 14.6 hours, Rosenstein, 15 hours. (Total of 89.9 hours for a fee award of \$37,732.50.) No multiplier is awarded as this is an uncomplicated lemon law case.

The requested costs are proper and were necessary and reasonable in the litigation.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405595	VALENCIA VS MANERI TRAFFIC CONTROL, INC., A CALIFORNIA CORPORATION	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

GRANT the Motion for Leave to Amend.

The Proposed First Amended Complaint is Ordered filed herewith.

The First Amended Complaint shall be the operative pleading in this matter.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406719	FLORES VS SANCHEZ	MOTION TO COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,983.50 AGAINST PLAINTIFF AND/OR HIS COUNSEL OF RECORDS

Tentative Ruling:

GRANT the Motion to Compel.

Plaintiff Kourage Flores is Ordered to appear for deposition to provide testimony at defense counsel's office within 20 days of today's date. Plaintiff and her attorney of record, Shaun J. Bauman, are sanctioned in the sum of \$960, payable to defense counsel within 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501881	CARRERA VS BOARD OF ADMINISTRATION OF THE CALIFORNIA PUBLIC EMPLOYEES' RETIREMENT SYSTEM	HEARING RE: WRIT OF MANDATE

Tentative Ruling:

DENY the Petition for Writ of Mandamus.

Petitioner brings this Petition for Writ of Mandamus, contending that the Board of Administration of the California Public Employees' Retirement System (Respondent) improperly decided to cancel his application for industrial disability retirement (IDR), and on appeal, the Administrative Law Judge improperly determined that Petitioner was not eligible to apply for IDR.

On March 18, 2019, Petitioner accepted the City of Bell's CCP § 998 offer to settle his civil whistleblower lawsuit on the following terms:

Plaintiff shall permanently separate from City employment. Plaintiff shall not seek future employment with the City. The City shall pay Plaintiff the sum of FOUR HUNDRED FIFTY THOUSAND DOLLARS AND ZERO CENTS (\$450,000.00) in satisfaction of all claims for damages...